

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.64513 of 2022

Md. Zahirul Islam

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Manjurul Karim with

Mr. Md. Abu Sufiqan, Advocates

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.

.... For the State.

Mr. Mainul Haque Howlader, Advocate

.... For the complainant opposite
party No.2.

Heard and Judgment on 09.01.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the proceedings of Sessions Case No.9249 of 2021 arising out of C.R. Case No.321 of 2020 under Sections 138/140 of the Negotiable Instrument Act, 1881, now pending in the Court of learned Metropolitan Joint

Sessions Judge, Second Court, Dhaka should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioner is accused No.5 and Chief Executive Officer of AWR Development Limited. It has been alleged by complainant opposite party No.2 that on 11.09.2018 the petitioner executed a deed of contract appointing the complainant as a consultant and for performance of above consultancy service the petitioner owed Tk2,45,00,000/- (two crore forty five lac) to the opposite party and for payment of above money gave Cheque No.CD No.1383373 on 12.09.2020 to the complainant which was dishonored on 08.11.2020 for insufficient fund. On compliance of all legal requirements and procedure the complainant filed this case under Section 138 of the Negotiable Instrument Act, 1881.

Mr. Md. Abu Sufian, learned Advocate for the petitioner submits that complainant opposite party No.2 Alam and Associates was the payee of the impugned cheque dated 12.09.2020. Above Alam and Associates is a proprietorship firm owned by Mozammel Haque Chowdhury and he alone was the

payee of above cheque and legally competent to bring a proceedings against the accused petitioner under Section 138 of the Negotiable Instrument Act, 1881. But above Alam and Associates or its proprietor Mozammel Haque Chowdhury was not the complainant of this case. The case was filed by one Md. Hossain Chowdhury who was allegedly empowered or authorized to file above case. Since complainant Md. Hossain Chowdhury was not the payee of the impugned cheque or a holder in due course as has been provided in Section 138 of the Negotiable Instrument Act, 1881 he was not legally competent to bring and maintain this case. As such this proceedings is a still born and preposterous one and liable to be quashed, concluded the learned Advocate for the petitioner.

On the other hand Mr. Mainul Haque Howlader, learned Advocate for the complainant opposite party No.2 submits that complainant Md. Hossain Chowdhury was properly authorized by Mozammel Hoque Chowdhury the proprietor of Alam and Associates who is the payee of the impugned cheque to file on his behalf this case and on the strength of above authority this case has been lawfully filed under Section 138 of the Negotiable

Instrument Act, 1881. The learned Judicial Magistrate on correct appreciation of materials on record has rightly taken cognizance against the petitioner and others under Section 138 of the Negotiable Instrument Act, 1881 and initiated this proceedings which calls for no interference.

In support of above submission the learned Advocate referred to the unreported judgment of the Appellate Division passed in Criminal Petition for Leave to Appeal No.798 of 2018.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It is not disputed that the petitioner who is accused No.5 and Chief Executive Officer of AWR Development Company Limited signed and issued a cheque of Tk.2,45,000,00/- to Alam and Associates on 12.09.2020 which after prosecution for encashment was dishonored on 08.11.2020 for insufficient fund.

It is not disputed that above payee namely Alam and Associates was a proprietorship firm and Mozammel Haque Chowdhury the was the proprietor of the same. It is also not disputed that above Mozammel Haque Chowdhury proprietor of

Alam and Associates who was the payee of the impugned cheque did not file this case himself.

The complaint of this case was lodged by Md. Hossain Chowdhury. In the complaint it has been merely mentioned that above complainant was empowered or authorized. No deed of the authorization was attached with the complaint nor the same was considered by the learned Judicial Magistrate at the time of the taking cognizance against the petitioner. But at the time of hearing of this matter the petitioner produced a copy of above authorization which runs as follows:

TO WHOM IT MAY CONCERN

This is to certify that Md. Hossain Chowdhury, Son of late Md. Shirajul Islam Chowdhury at 204 Elephant Road, New Market, Dhaka-1205. He is Authorized to File a C.R. Case About Cheque No.CD No.1383373 date-12.09.2010. Account No.0951101000009824 United Commercial Bank Ltd. on behalf of Alam and Associates proprietor Mozammel Hoque Chowdhury, Son of Ishaque Chowdhury House No.672 (2nd Floor), Road No.9, Mirpur, DOHS, Dhaka-1212.

(Mozammel Haque Chowdhury)

Md. Hossain Chowdhury

Proprietor

Alam and Associates

Above authorization dated 20.12.2020 does not disclose any cause or reason as to why payee Mozammel Haque Chowdhury was unable to present the complaint of this case himself to the Court or what was the capacity of the authorized person Mr. Md. Hossain to file above complaint. There is no mention that above authorization was given in lie of money or consideration or the authorized person Mr. Md. Hossain Chowdhury had any special knowledge as to the above transaction.

The facts of the case law cited by the learned Advocate for the complainant opposite party No.2 as mentioned above is distinguishable from those of the case in hand. In above cited case the complainant was in jail custody which made his personally incapable to present the complaint but the limitation was running out and on consideration of above materials the presentation of the complaint by an authorized person was accepted as lawful. But in our case the payee namely Md. Mozammel Hoque

Chowdhury did not mention any such special Circumstance making him incapable to lodge the complaint.

The Negotiable Instrument Act, 1881 is a special law and a proceeding under above law can be initiated only by the payee of the dishonored cheque or a person who is a holder of above cheque in due course. To be a holder in due course it is necessary to prove that the person was a holder of the impugned cheque for consideration or the cheque was transferred to him before it became payable and he must be a transferee in good faith.

Since the complainant of this case was neither a payee nor a holder in due course he was not legally competent to maintain this proceedings under Section 138 of the Negotiable Instrument Act, 1881.

This proceedings appears to be a preposterous and still born one and the further continuation of this proceeding shall not meet the ends of justice but bring unnecessary sufferings and plight to the petitioner.

In above view of the materials on record we find substance in this petition under Section 561A of the Code of Criminal

Procedure and the Rule issued in this connection deserves to be made absolute.

Accordingly, the Rule is hereby made absolute. The proceedings of Sessions Case No.9249 of 2021 arising out of C.R. Case No.321 of 2020 under Sections 138/140 of the Negotiable Instrument Act, 1881, now pending in the Court of learned Metropolitan Joint Sessions Judge, Second Court, Dhaka is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*